Agency Electronic Information Request Standard

Introduction

Under the Oklahoma Open Records Act, all public records are available for inspection and copying unless specifically exempted from disclosure under the law. In a federated and decentralized organization, agencies are the subject matter experts for their data records. As such, there are specific responsibilities they bear for electronic information requests.

Purpose

This document establishes requirements for agencies to request data held by OMES in response to the Open Records Act and electronic discovery requests. This standard is applicable to requests made by state agencies and is not intended for members of the public, vendors, law enforcement or any other entity to make requests through use of the OMES Service Desk. Service desk tickets received from any such persons or entities will be closed without response.

Standard

All state agencies must submit requests for records through the online State Records Request portal. OMES' Risk, Assessment and Compliance team will coordinate the assignment and fulfillment of each request with all stakeholders and track the status of request to completion.

Agencies are prohibited from requesting a search of data sources owned by another agency. Each data request for OMES must include search parameters including, but not limited to, key words, date ranges and mailbox(es)/source(s) to be searched. Request should also include any related documents that are not confidential (e.g., a copy of the original open record request).

Pursuant to 62 O.S. §35.8(c), each requesting agency has the duty to thoroughly review records provided in response to this request. If records received contain records that do not belong to the requesting agency, the requesting agency must immediately notify both OMES Legal, the eDiscovery provider (if applicable) and the affected agency. Prior to releasing any records received, the requesting agency must ensure that such records are (i) the requesting agency's records, (ii) responsive to the request and (iii) do not contain privileged or exempt records that also belong to another agency. The requesting agency is solely responsible for redacting records and asserting privilege and/or exemptions which may be claimed or required by law.

Compliance

This standard shall take effect upon publication and is made pursuant to Title 51 O.S. §§ 151-172. OMES may amend and publish the amended standards policies and standards at any time. Compliance is expected with all published policies and standards, and any published amendments thereof. Employees found in violation of this standard may be subject to disciplinary action, up to and including termination.

Rationale

To coordinate and require central approval of state agency information technology purchases and projects to enable the chief information officer to assess the needs and capabilities of state agencies as well as streamline and consolidate systems to ensure that the state delivers essential public services to its citizens in the most efficient manner at the lowest possible cost to taxpayers.

References

- Open Records Act.
- State Records Request.
- Records Request website.

Revision history

This standard is subject to periodic review to ensure relevancy.

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Last revised: 02/13/2025	**Last reviewed:** 03/26/2026
Approved by: Janet Morrow, Director of Risk, Assessment and Compliance	